

1 ENGROSSED HOUSE
2 BILL NO. 2950

By: Woolley, Hall, Jenkins, and
Olsen of the House

3 and

4 McIntosh and Grellner of
5 the Senate

6
7
8 An Act relating to postsecondary education; defining
9 terms; prohibiting postsecondary institutions from
10 having differentiated standardized test score
11 requirements based on a prospective student's primary
12 or secondary educational background; authorizing
13 State Regents for Higher Education and State Board of
14 Career and Technology Education to ensure compliance
15 and promulgate rules; amending 70 O.S. 2021, Section
16 2603, as last amended by Section 1, Chapter 485,
17 O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), which
18 relates to the Oklahoma Higher Learning Access
19 Program eligibility requirements; removing
20 differentiated grade point average and standardized
21 test score requirements based on educational means;
22 providing for codification; providing an effective
23 date; and declaring an emergency.

24
BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 4316 of Title 70, unless there
is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Postsecondary institution" means:

1 a. any public university, college, or other postsecondary
2 institution within The Oklahoma State System of Higher
3 Education, and

4 b. any technology center school or college governed by
5 the State Board of Career and Technology Education;
6 and

7 2. "Standardized test score requirement" means any minimum
8 composite or sub-score on the ACT test, SAT, CLT, or any equivalent
9 assessment used for admission, placement, or scholarship purposes.

10 B. No postsecondary institution shall have differentiated
11 standardized test score requirements based on a prospective
12 student's primary or secondary educational background, including the
13 type of school, whether the school was accredited or unaccredited,
14 the program, or the mode of education, for purposes of:

15 1. General undergraduate admission;

16 2. Assured admission;

17 3. Program-specific admission;

18 4. Concurrent enrollment eligibility; or

19 5. Scholarship or financial aid eligibility administered by the
20 postsecondary institution.

21 C. The Oklahoma State Regents for Higher Education and the
22 State Board of Career and Technology Education shall ensure
23 compliance with this section and may promulgate rules as necessary.

SECTION 2. AMENDATORY 70 O.S. 2021, Section 2603, as last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), is amended to read as follows:

Section 2603. A. Except as otherwise provided for in subsection B of this section and elsewhere in this section, to be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award which includes payment of an amount equivalent to resident tuition or other tuition pursuant to Section 2604 of this title for the first semester or other academic unit of postsecondary enrollment, a student shall:

1. Be a resident of this state or be enrolled in a school district located in this state that serves students who reside in both this state and an adjacent state pursuant to a contract as authorized in Section 5-117.1 of this title;

2. Be a United States citizen or lawfully present in the United States. A student who is not a United States citizen or lawfully present in the United States shall not be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award notwithstanding the provisions of Section 3242 of this title. The provisions of this paragraph shall not apply to any student who was enrolled in the Oklahoma Higher Learning Access Program prior to the end of the 2006-2007 school year;

3. Have a record of satisfactory compliance with agreements executed pursuant to Section 2605 of this title;

1 4. ~~a.~~ Have graduated within the previous three (3) years
2 ~~from a high school accredited by the State Board of~~
3 ~~Education or the Oklahoma School of Science and~~
4 ~~Mathematics~~ with a minimum 2.5 cumulative grade point
5 average on a 4.0 scale for all work attempted in
6 grades nine through twelve,

7 ~~b.~~ ~~Have graduated within the previous three (3) years~~
8 ~~from a high school not accredited by the State Board~~
9 ~~of Education with a minimum 2.5 cumulative grade point~~
10 ~~average on a 4.0 scale for all work attempted in~~
11 ~~grades nine through twelve and have achieved a~~
12 ~~composite score of 22 or higher on the ACT test, or~~

13 ~~c.~~ ~~Have satisfactorily completed within the previous~~
14 ~~three (3) years an educational program that was~~
15 ~~provided through a means other than a public or~~
16 ~~private school and have achieved a composite score of~~
17 ~~22 or higher on the ACT test;~~

18 5. Have completed the curricular requirements for admission to
19 an institution within The Oklahoma State System of Higher Education.
20 Students shall also have attained a 2.5 grade point average in the
21 core curriculum courses. Students who attended a high school which
22 did not offer all the core curriculum courses or students who were
23 educated by other means and were not offered all the core curriculum
24 courses shall be allowed to satisfy this curriculum requirement by

1 participating in a program approved by the Oklahoma State Regents
2 for Higher Education for remediation of high school curricular
3 deficiencies;

4 6. Have satisfied admission standards as determined by the
5 Oklahoma State Regents for Higher Education for first-time-entering
6 students for the appropriate type of institution, or, if attending a
7 private institution, have satisfied admission standards as
8 determined by the private institution. No student participating in
9 the Oklahoma Higher Learning Access Program shall be admitted into
10 an institution of higher education by special admission standards;

11 7. Have secured admission to, and enrolled in, an institution
12 which is a member of The Oklahoma State System of Higher Education,
13 a postsecondary vocational-technical program offered by a technology
14 center school that meets the requirements to be eligible for federal
15 student financial aid, or a private institution of higher learning
16 located within this state and accredited pursuant to Section 4103 of
17 this title; and

18 8. a. Have established financial need according to the
19 provisions of subsection D of Section 2605 of this
20 title and standards and provisions promulgated by the
21 Oklahoma State Regents for Higher Education,

22 b. If the student was adopted between birth and twelve
23 (12) years of age while in the permanent custody of
24 the Department of Human Services, in the court-ordered

1 custody of a licensed private nonprofit child-placing
2 agency, or federally recognized Indian tribe, as
3 defined by the federal Indian Child Welfare Act of
4 1978, have established financial need according to the
5 provisions of paragraph 1 of subsection E of Section
6 2605 of this title and standards and provisions
7 promulgated by the Oklahoma State Regents for Higher
8 Education,

9 c. If the student was adopted between thirteen (13) and
10 seventeen (17) years of age while in the permanent
11 custody of the Department of Human Services, in the
12 court-ordered custody of a licensed private nonprofit
13 child-placing agency, or federally recognized Indian
14 tribe, as defined by the federal Indian Child Welfare
15 Act of 1978, have established financial need according
16 to the provisions of paragraph 2 of subsection E of
17 Section 2605 of this title and standards and
18 provisions promulgated by the Oklahoma State Regents
19 for Higher Education,

20 d. If the student was placed in the custody of the
21 Department of Human Services at any time during the
22 eighth, ninth, tenth, or eleventh grade and enrolls in
23 the program no later than his or her official date of
24 high school graduation, have established financial

1 need according to the provisions of paragraph 3 of
2 subsection E of Section 2605 of this title and
3 standards and provisions promulgated by the Oklahoma
4 State Regents for Higher Education, or

5 e. If the student is the child of a certified classroom
6 teacher and meets the provisions of paragraph 5 of
7 subsection E of Section 2605 of this title. For the
8 purposes of this paragraph, "certified classroom
9 teacher" shall have the same meaning as provided in
10 subparagraph d of paragraph 5 of subsection E of
11 Section 2605 of this title.

12 B. 1. A student shall be eligible to participate in the
13 Oklahoma Higher Learning Access Program and to qualify for an award
14 which includes payment of an amount equivalent to resident tuition
15 or other tuition pursuant to Section 2604 of this title for the
16 first semester or other academic unit of postsecondary enrollment if
17 the student meets all of the following criteria:

18 a. is a child of any person killed after January 1, 2000,
19 in the line of duty in any branch of the United States
20 Armed Forces or who died after January 1, 2000, as a
21 result of an injury sustained while in the line of
22 duty in any branch of the United States Armed Forces
23 and the person who was killed or died filed an
24 individual or joint Oklahoma income tax return for the

- 1 tax year prior to the year during which the person was
2 killed or died,
- 3 b. is a resident of this state or is enrolled in a school
4 district located in this state that serves students
5 who reside in both this state and an adjacent state
6 pursuant to a contract as authorized in Section 5-
7 117.1 of this title,
- 8 c. enrolls in an institution within The Oklahoma State
9 System of Higher Education prior to reaching the age
10 of twenty-one (21),
- 11 d. has satisfied admission standards as determined by the
12 Oklahoma State Regents for Higher Education for first-
13 time-entering students for the appropriate type of
14 institution, or, if attending a private institution,
15 has satisfied admission standards as determined by the
16 private institution. No student participating in the
17 Oklahoma Higher Learning Access Program shall be
18 admitted into an institution of higher education by
19 special admission standards,
- 20 e. has secured admission to, and enrolled in, an
21 institution which is a member of The Oklahoma State
22 System of Higher Education, a postsecondary
23 vocational-technical program offered by a technology
24 center school that meets the requirements to be

1 eligible for federal student financial aid, or a
2 private institution of higher learning located within
3 this state and accredited pursuant to Section 4103 of
4 this title, and

5 f. executes an agreement pursuant to subsection C of
6 Section 2605 of this title.

7 2. A student who is eligible to participate in the program
8 pursuant to this subsection shall not be required to meet the
9 eligibility requirements set forth in subsection A of this section.

10 C. To retain eligibility while pursuing the program of higher
11 learning in which enrolled, the student shall:

12 1. Meet the requirements for retention and degree completion as
13 established by the institution in which the student is enrolled;

14 2. Maintain good academic standing and satisfactory academic
15 progress according to standards of the Oklahoma State Regents for
16 Higher Education;

17 3. Maintain satisfactory academic progress as required for
18 eligibility for federal Title IV student financial aid programs.
19 The provisions of this paragraph shall become effective for the
20 2012-2013 school year;

21 4. Comply with the standards related to maintenance of
22 eligibility as promulgated by the Oklahoma State Regents for Higher
23 Education; and
24

1 5. Refrain from conduct that leads to expulsion or suspension
2 of more than one semester from an institution of higher education.
3 A student who violates the provisions of this paragraph shall
4 permanently lose eligibility for program benefits. The provisions
5 of this paragraph shall become effective January 1, 2008.

6 D. The Oklahoma State Regents for Higher Education and the
7 State Board of Career and Technology Education shall promulgate
8 rules relating to maintenance of eligibility under the Oklahoma
9 Higher Learning Access Act by a student.

10 E. It is the intent of the Legislature that students in the
11 ninth grade for the 1992-93 school year who are determined to be
12 eligible Oklahoma Higher Learning Access students pursuant to the
13 Oklahoma Higher Learning Access Act shall be the first students
14 eligible for benefits from the Oklahoma Higher Learning Access Trust
15 Fund.

16 F. The Oklahoma State Regents for Higher Education are
17 authorized to study, develop, and propose criteria for determining
18 award eligibility based upon the completion of seven semesters of
19 high school coursework by a student.

20 SECTION 3. This act shall become effective July 1, 2026.

21 SECTION 4. It being immediately necessary for the preservation
22 of the public peace, health or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the House of Representatives the 11th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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8 _____
9 Presiding Officer of the Senate